

26STCV16215 26STCV16215

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-08

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Case Number: 26STCV16215 Hearing Date: July 8, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 8, 2026 TRIAL DATE: NOT SET

CASE: IRP Grace Apartments LLC v. Williams

CASE

NO.: 26STCV16215

DEMURRER TO COMPLAINT

MOVING

PARTY: Defendant Saadiq Williams

RESPONDING

PARTY(S): Plaintiff

IRP Grace Apartments LLC

TENTATIVE RULING:

Williams's

Demurrer to the Complaint is OVERRULED.

Moving party to give notice.

BACKGROUND

This

is an unlawful detainer action for nonpayment of rent.

DISCUSSION:

Williams demurs to the Complaint for failure to state a cause of action for unlawful detainer. Based on the allegations in the complaint, and accepting those allegations as true, the Court overrules the demurrer.

Legal

Standard

A

demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

Analysis

Williams raises two arguments. First, he claims that the 30-day notice alleged in the Complaint overstates the amount of rent due. This is not a proper issue for demurrer. The Complaint alleges that Williams owed a certain amount of rent at the time the notice was served. The Court, at this procedural posture, must accept that allegation as true. Williams points to nothing in the pleadings or in the judicially-noticeable record that demonstrates that the rent amount alleged in the Complaint is incorrect.

Second,

Williams argues that the three-day notice alleged in the Complaint was served before the rent amount on the notice became due. But that defect is not apparent from the Complaint. The three-day notice seeks

rent due “from 11/1/2025 through 4/30/26.”

(Compl, Ex. A.) The three-day

notice was served on April 10, 2026. (Id.) The Complaint explains that “[t]he current

monthly rent is \$4,715.00, due by the first of each month.” (Complaint, ¶ 3, emphasis added.) Thus, per the Complaint, April rent for 2026

was due in full on April 1, 2026. The

notice seeks rent through April 30, 2026, and was served on April 10, or after

April 1, 2026 when that rent became due.

Thus, the pleadings do not indicate that the three-day notice was served

before the amount on it became due.

Accordingly, neither of Williams’ two

bases for demurrer succeeds. The Court

must overrule the demurrer.

CONCLUSION:

The demurrer to the

Complaint is OVERRULED.

Moving party

to give notice.

IT IS

SO ORDERED.

Dated: July 8, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.